Kinds of Leave under Labor Law

1. Service Incentive Leave
2. Maternity Leave
3. Paternity Leave
4. Solo Parents' Leave
5. Gynecological Leave (R.A. No. 9710)
6. VAWC Leave (R.A. No. 9262)

Service Incentive Leave

- Every employee who has rendered at least one (1) year of service shall be entitled to a yearly service incentive leave of five (5) days with pay
- The law requires only the grant of service incentive leave (SIL). The grant of vacation leave (VL) or sick leave (SL) depends on voluntary employer policy or collective bargaining agreement
- Establishments with less than ten (10) employees, as shown by evidence, are not legally bound to give the five days of SIL, unless obliged by contract, policy, or practice
- Unused SIL at the end of the year should be converted to cash

Service incentive leave does not apply to the following employees:

1. Those who are already enjoying the benefit
2. Those enjoying vacation leave with pay of at least five (5) days
3. Those employed in establishments regularly employing fewer than 10 employees

Maternity Leave

- All covered female workers in government and the private sector, including those in the informal economy, regardless of civil status or the legitimacy of her child, shall be granted one hundred five (105) days maternity leave with full pay and an option to extend for an additional thirty (30) days without pay
- Enjoyment of maternity leave cannot be deferred but should be availed of either before or after the actual period of delivery in a continuous and uninterrupted manner
- Maternity leave shall be granted to female workers in every instance of pregnancy, miscarriage or emergency termination of pregnancy, regardless of frequency:
- For cases of miscarriage or emergency termination of pregnancy, sixty (60) days' maternity leave with full pay shall be granted
- In case the employee qualifies as a solo parent, the employee shall be paid an additional maternity benefit of fifteen (15) days.

Notice

- For female workers in the public sector, the head of the agency shall be given due notice, in writing, at least forty-five (45) days before the end of her maternity leave
- No prior notice shall be necessary in the event of a medical emergency, but subsequent notice shall be given to the head of the agency

Maternity Leave Credits

- The maternity leave can be credited as combinations of prenatal and postnatal leave as long as it does not exceed one hundred five (105) days and provided that compulsory postnatal leave shall not be less than sixty (60) days

Allocation of Maternity Leave Credits

- Any female worker entitled to maternity leave benefits as provided for herein may, at her option, allocate up to seven (7) days of said benefits to the child's father, whether or not the same is married to the female worker
- In the death, absence, or incapacity of the former, the benefit may be allocated to an alternate caregiver who may be a relative within the fourth degree of consanguinity or the current partner of the female worker sharing the same household, upon the election of the mother taking into account the best interests of the child

Maternity Leave with Pay in Case of Childbirth, Miscarriage, or Emergency Termination of Pregnancy After the Termination of an Employee's Service

- Maternity leave with full pay shall be granted even if the childbirth, miscarriage, or emergency termination of pregnancy occurs not more than fifteen (15) calendar days after the termination of an employee's service, as her right thereto has already accrued
- Such period is not applicable when the employment of the pregnant woman worker has been terminated without just cause, in which case the employer will pay her the full amount equivalent to her salary for one hundred five (105) days for childbirth and sixty (60) days for miscarriage or emergency termination of pregnancy based on her full pay, in addition to the other applicable daily cash maternity benefits that she should have received had her employment not been illegally terminated

Paternity Leave

- Every married male employee in the private and public sectors shall be entitled to a paternity leave of seven (7) days with full pay for the first four (4) deliveries of the legitimate spouse with whom he is cohabiting
- The male employee applying for paternity leave shall notify his employer of the pregnancy of his legitimate spouse and the expected date of such delivery
- Delivery shall include childbirth or any miscarriage
- The usage of the leave shall be after the delivery, without prejudice to an employer's policy of allowing the employee to avail of the benefit before or during the delivery

Conditions for entitlement to Paternity Leave:

1. He is married
2. He is an employee at the time of the delivery of his child
3. He is cohabiting with his spouse at the time she gives birth or suffers a miscarriage
4. He has applied for paternity leave with his employer within a reasonable period of time from the expected date of delivery by his pregnant spouse, or within such a period as may be provided by company rules and regulations
5. His wife has given birth or suffered a miscarriage

Solo Parents' Leave

- A forfeitable and noncumulative parental leave of not more than seven (7) working days with pay every year shall be granted to any solo parent employee, regardless of employment status, who has rendered service of at least six (6) months
- The solo parent employees in the government and the private sector may avail of the parental leave benefit

Who are considered as Solo Parents:

1. A parent who provides sole parental care and support of the child or children due to:
    a. Birth as a consequence of rape, even without final conviction: *Provided,* that the mother has the sole parental care and support of the child or children; *Provided,* further, that the solo parent under this category may still be considered a solo parent under any of the categories in this section;
    b. Death of the spouse;
    c. Detention of the spouse for at least three (3) months or service of sentence for a criminal conviction;
    d. Physical or mental incapacity of the spouse as certified by a public or private medical practitioner;
    e. Legal separation or de facto separation for at least six (6) months, and the solo parent is entrusted with the sole parental care and support of the child or children
    f. Declaration of nullity or annulment of marriage, as decreed by a court recognized by law, or due to divorce, subject to existing laws, and the solo parent is entrusted with the sole parental care and support of the child or children; or
    g. Abandonment by the spouse for at least six (6) months;
2. Spouse or any family member of an Overseas Filipino Worker (OFW), or the guardian of the child or children of an OFW: *Provided,* That the said OFW belongs to the low/semi-skilled worker category and is away from the Philippines for an uninterrupted period of twelve (12) months: *Provided,* further, That the OFW, his or her spouse, family member, or guardian of the child or children of an OFW falls under the requirements of this section;
3. Unmarried mother or father who keeps and rears the child or children;
4. Any legal guardian, adoptive or foster parent who solely provides parental care and support to a child or children;
5. Any relative within fourth (4th) civil degree of consanguinity or affinity of the parent or legal guardian who assumes parental care and support of the child or children as a result of the death, abandonment, disappearance or absence of the parents or solo parent for at least six (6) months: *Provided,* That in cases of solo grandparents who are senior citizens but who have the sole parental care and support over their grandchildren who are unmarried, or unemployed and twenty-two (22) years old or below, or those twenty-two (22) years old or over but who are unable to fully take care or protect themselves from abuse, neglect, cruelty, exploitation, or discrimination because of a physical or mental disability or condition, they shall be entitled to the benefits of this Act in addition to the benefits granted to them by Republic Act No. 9257, otherwise known as the 'Expanded Senior Citizens Act of 2003'; or
6. A pregnant woman who provides sole parental care and support to the unborn child or children."

Work Discrimination

- No employer shall discriminate against any solo parent employee with respect to terms and conditions of employment on account of his or her status
- Employers may enter into agreements with their solo parent employees for a telecommuting program

Educational Benefits

- The DepEd, CHED, and TESDA shall provide scholarship programs for solo parents and a full scholarship for one (1) child of a solo parent in institutions of basic, higher, and technical vocational skills education
- The said solo parent or child of a solo parent has all the qualifications set for the scholarship program of the DepEd, CHED, or TESDA
- The other children, if any, of a solo parent shall be given priority in the education programs and other laws relating to education programs of the government
- Non-formal education programs appropriate for solo parents and their children may likewise be provided
- The children must be dependent on the solo parent for support, unmarried, unemployed, and twenty-two (22) years of age or below

Limitation and Termination of Benefits of a Solo Parent

- Only a solo parent exercising sole parental care and support of the child or children is entitled to claim the benefits of solo parent
- A solo parent shall not lose his or her status as solo parent if the other parent provides occasional assistance and/or seasonal gifts that do not meet the legal requirement of support under the Family Code of the Philippines
- The absence of a valid and legal marriage between the mother and father of a child or dependent does not automatically entitle either individual to solo parent benefits if the factual circumstances demonstrate that parental care and support are shared
- When a solo parent ceases to be such by reason of change of status and circumstances, the said solo parent shall be ineligible to avail of solo parent benefits

Gynecological Leave

- A woman employee having rendered continuous aggregate employment service of at least six (6) months for the last twelve (12) months shall be entitled to a special leave benefit of two (2) months with full pay based on her gross monthly compensation following surgery caused by gynecological disorders

VAWC Leave

- VAWC victims shall be entitled to take a paid leave of absence up to ten (10) days in addition to other paid leaves under the Labor Code and Civil Service Rules and Regulations, extendible when the necessity arises as specified in the protection order